# The 1955 Possession Order

## *Version 1.0.0 · 2026-10-23*

**Editors of the Great House Farm Legal Wiki**

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Page 22 of the Great House Farm Legal Wiki, carried over from the version last modified on 2026-10-21. The same page is published at research.bucklerfamily.estate, and this version is also a PDF in the wayback archive.

# 1 Release notes

## 1.1 This release (version 1.0.0)

- **2026-Oct-23** - Carried over to the docs library from Legal Wiki page 22 (last modified 2026-10-21 19:06:15 UTC). The page text, dates and references are as on the wiki. Links to wiki pages lead to the same page on research.bucklerfamily.estate; images are links to their files on the wiki.

## 1.2 Older versions

None yet.

# 2 Record

**Page ID:** 22 · **Title:** The 1955 Possession Order · **Evidence status:** Not yet labelled — see the Editing Protocol · **Version:** 1.0.0 · Editing Protocol

**In 1955 Western Ground Rents (WGR) obtained… … read more**

In 1955 Western Ground Rents (WGR) obtained a High Court possession order against Frederick Buckler alone, expressed to cover "the whole of the farm" of Great House Farm. The family's established case is that this wording blurred the 1877/1928 division between Parcel A and Parcel B. On 4 July 1955, WGR took possession of Parcel B and also seized Parcel-A land: the woodland north of the house and the ground south-east of the house and garden that later became village green VG41 [PENDING: EV-0034]. Mary remained in occupation of the farmhouse/buildings /garden group, but that physical exception did not mean the rest of Parcel A belonged to WGR or was lawfully included in the Parcel-B taking.

**What came before: 1939 fields tenancy · 1949… … read more**

**What came before:** 1939 fields tenancy · 1949 Frederick's unwritten tenancy · 1950–52 papers taken | **What happened next:** 1959 refusal · 1962 order

**Background: Frederick held a periodic… … read more**

**Background:** Frederick held a periodic agricultural tenancy of the fields from 2 February 1949, never put in writing, and last paid rent in 1953 (details).

**Evidence: Yearly agricultural tenancy, WGR… … read more**

**Evidence:** Yearly agricultural tenancy, WGR to Frederick Buckler, from 2 February 1949 (no document: never put in writing; catalogued here as GHF-E022-01) · Court of Appeal judgment, 1987 (catalogued here as GHF-E022-02): "even though there was no written agreement, Mr Frederick Buckler had a periodic tenancy which was protected by the Agricultural Holdings Act."

## 2.1 Evidence, in date order

**2 February 1955: Tenancy ends; the order**

Court order **High Court possession order against Frederick Buckler, 1955**

Placeholder: to be obtained

Catalogue: GHF-E022-03

Location: Family archive / privately held material

Court record **High Court summary possession judgment / Order 14, 2 February 1955**

Awaited: primary event document not yet uploaded

Catalogue: GHF-E022-04

Location: High Court / court archive — primary record to be obtained

> "Western Ground Rents then brought proceedings for possession against Mr Frederick Buckler in the High Court and obtained a possession order, under Order 14, in respect of the whole of the farm." (Court of Appeal, 1987)

**Evidence description:** notice to quit expired on 2 February 1955. WGR sued Frederick in the High Court and obtained summary judgment (Order 14) for possession of the whole of the farm.

‹A + B as one›As worded: "the whole of the farm" (whole farm), against a tenant whose unwritten tenancy was of the fields only (SOURCE PENDING: no written tenancy or named statement yet).

**Nomenclature**

Selected wording: the farm

- the farm
- whole farm
- Great House Farm
- Parcels A and B

Proceed to evidence →Close

**Nomenclature**

Selected wording: whole farm

- the farm
- whole farm
- Great House Farm
- Parcels A and B

Proceed to evidence →Close

**Nomenclature**

Selected wording: Great House Farm

- the farm
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Proceed to evidence →Close

**Nomenclature**

Selected wording: Parcels A and B

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Proceed to evidence →Close

**Research note.** The order bound Frederick as tenant, not Mary, who was separately occupying and claiming ownership. Read strictly for what it says, the land let was the fields (Parcel B). The family case is that the 1928 operation of the 1877 arrangement had already carried Parcel A—including the northern woodland and the south-eastern ground later registered as VG41—into the Williams family's freehold, while WGR's agricultural possession claim concerned Parcel B. The 1955 "whole farm" wording then enabled an already distinct Parcel-A landholding to be treated as part of Frederick's fields possession, making Mary's continuing claim appear permissive and shifting the apparent adverse-possession start from 1928 to 1955. This was, as reported (SOURCE PENDING: no document or named speaker yet), the second failed effort to recast her ownership as permissive; it must not be confused with proof that the order lawfully covered Parcel A.

**4 July 1955: Parcel B possession extended onto Parcel-A woodland and green; Mary held the house group**

Enforcement record **Possession enforcement, 4 July 1955**

Awaited: primary event document not yet uploaded

Catalogue: GHF-E022-05

Location: Court / enforcement records — primary record to be obtained

**Evidence description and correct spatial reading:** the available 1987 judgment reports that on 4 July 1955 possession was taken of all parts except the farmhouse and garden, and attributes that exception to Mary's recent return from hospital and her strong objection [PENDING: EV-0034]. That summary must not be read as saying that all of Parcel A was left with Mary. [SOURCE PENDING] The northern forest and south-eastern green land of Parcel A were physically seized during enforcement of Parcel B; no document or named speaker is yet cited for this. The farmhouse-and-garden exception describes the remaining occupied centre, including the associated barn, stable and yard west of the house; it does not define the entire extent of Parcel A. The original execution papers should be used to corroborate and plot this account, not to dismiss it.

Parcel B The fields were taken. On the family's established account, the same enforcement also seized two parts of Parcel A: (1) the forest north of the house and (2) the ground south-east of the house/garden later registered as VG41. Mary remained in the farmhouse, garden and associated buildings/yard, but **Parcel A was not left intact with her**.

**Research note.** The judgment gives no legal bar as the reason the house group was left occupied; it records Mary's health and strong objection. It is further recorded, without a named source yet (SOURCE PENDING), that Mary threatened serious consequences to her own safety if she were removed by force. This must be read in the context of her recent leg amputation and responsibility for seven children: it explains her desperate defence of the remaining occupied centre, not that Parcel A was limited to the house and garden or that she abandoned the northern forest and south-eastern green already seized. Mary's own statement says she dealt with the 1955 and 1962 applications in an earlier statement, still to be found, and that she thought the loss of the family papers in 1950–52 "was in some way connected" with WGR's first application (Mary's statement).

**What happened next: WGR brought a fresh… … read more**

**What happened next:** WGR brought a fresh action naming Mary as well as Frederick, for the farmhouse and garden that remained occupied after the 1955 enforcement (1962 possession order) [PENDING: EV-0041]. This later use of "farmhouse and garden" must not be allowed to collapse Parcel A into that limited occupied area: the northern woodland and south-eastern green were already seized along with Parcel B in 1955 (SOURCE PENDING, see above).

**Method and evidence key: Main Page · title… … read more**

Method and evidence key: Main Page · title test · BP v Buckler · Master timeline

## 2.2 Page version & change log

**Current version:** 1.0.0

| Version | Date (UTC) | Editor (human or agent name) | Change | Source / evidence |
|---|---|---|---|---|
| 1.0.0 | 2026-10-18T15:15Z | Sion's Tab agent | Footer standardised; no content change | Editing Protocol, 18 Oct 2026 |

Agents and editors: follow the Editing Protocol.